MUTUAL CONFIDENTIALITY AGREEMENT

THIS AGREEMENT is effective as from the Effective Date (as defined in Clause 1):

BETWEEN:

Entity name:	1. NIHVA Technologies Pvt. Ltd.	2. FLOATSYS LLC
Place of incorporation:	Pune, India	India, USA
Principal Address:	Plot No. 187,1st floor, above Renault Showroom, G Block, MIDC, Thermax Chowk, Pimpri-Chinchwad, Maharashtra 411019	6027 EMBERWOOD FALLS DR, KATY, India 77494 USA

each entity being a "Party" or collectively the "Parties".

WHEREAS:

A The Parties and/or their respective Affiliate(s) (as defined in Clause 1) are interested in undertaking discussions in relation to the Purpose (as defined in Clause 1).

B In relation to and in order to facilitate such discussions, the Parties may reveal certain confidential information to each other (including their Affiliate(s)).

c The Parties wish to enter into this Agreement to establish their respective rights and obligations in respect of such discussions, information sharing and other matters.

NOW THEREFORE, IN CONSIDERATION OF THE MUTUAL PROMISES CONTAINED HEREIN, THE RECEIPT AND ADEQUACY OF WHICH IS HEREBY ACKNOWLEDGED, THE PARTIES AGREEAS FOLLOWS:

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1. The following expressions shall have the meanings specified in this Clause:

Confidential Information	All information which relates to, contains, derives from, reflects, is the result of or is in any way connected with: (i) the Purpose; and/or (ii) this Agreement; and/or (iii) the affairs of the Disclosing Party or its Affiliate(s), to the extent concerning or arising out of the Purpose; and/or (iv) the existence, nature and status of discussions or relationships, whether between the Parties or their Affiliate(s), or the Disclosing Party and its actual or potential clients, suppliers or other counterparties, in each case to the extent concerning or arising out of the Purpose; such information including without limitation: (a) any and all data, interim or final reports, analyses, findings, conclusions, designs, drawings, sketches, specifications, results oftests, computer programs, manuals, Intellectual Property, records, correspondence, notes, studies and other information, whether of a technical, commercial or other nature, and in each case regardless of whether such information is identified as confidential or not; and/or (b) any such information ascertainable by inspection, observation or discussion by one Party, its Personnel, its Affiliate(s) or its Representatives, of or at the premises of the other Party or its Affiliate(s); which is disclosed, directly or indirectly, under this Agreement by either Party or its Affiliate(s) to the other Party or its Affiliate(s), whether orally, in writing, in machine readable form or by any other means
Disclosing Party	A Party which discloses(s) Confidential Information
Effective Date	March 23, 2022
Intellectual Property	Any inventions, patents, rights in designs, trade or service marks, copyright, circuit layout, topography rights, rights in confidential information including

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	trade secrets and know-how (including but not

	limited to a work of authorship, a process diagram, a drawing, a blueprint, a model, a specification, a report, a manuscript, a document, a manual, a photograph, a database, a computer program, a design for an apparatus or process or system, working notes or a plan), moral rights and all other similar or equivalent rights in any country, in each case whether or not registered, and any applications for registration of any of the foregoing, and all rights to apply to register any of the foregoing.
Personnel	The directors, officers, and employees of a Party
Purpose	Party 1 have received an Invitation to bid from a prospective client in India for "SUPPLY & INSTALLATION, COMMISSIONING OF RETRACTABLE HATCH COVER". Party 1 would like explore possibility of parties jointly bidding.
Receiving Party	A Party which receives(s) Confidential Information
Representatives	The advisors, agents, contractors and/or consultants of a Party

2. In consideration of the disclosure of Confidential Information by the Disclosing Party to the Receiving Party, the Receiving Party:

2.1 acknowledges that the Confidential Information is confidential and is received under a duty of confidentiality to the Disclosing Party;

2.2 shall keep the Confidential Information secret and strictly confidential and shall be liable for any unauthorized disclosure of Confidential Information by it or any of its Personnel, Representatives and/or its Affiliate(s);

2.3 shall use the Confidential Information solely for the purpose of the Purpose, and not for any other purpose including, without limitation, any use in competition with any business carried onor proposed to be carried on by the Disclosing Party;

2.4 shall not without the prior written consent of the Disclosing Party(which may be withheld in the Disclosing Party's absolute discretion) disclose any Confidential Information to any person, except to its Personnel,

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Representatives and/or its Affiliate(s), who have a legitimate need to know the Confidential Information for the purpose specified in Clause 2.3, and to the extent required for such purpose;

2.5 shall ensure, before disclosing any Confidential Information to any of its Personnel, Representatives and/or its Affiliate(s) in accordance with Clause 2.4, that such recipients comply with the Receiving Party's obligations hereunder and that such recipients shall keep such Confidential Information in strict confidence (in the case of its Personnel and Affiliate(s), this obligation means they must be aware of and agree to the same levels of confidentiality as the Receiving Party, or in the case of its Representatives this obligation means they should be bound by professional confidentiality obligations or a confidentiality agreement on terms equivalent to those in this Agreement); and

2.6 shall secure, and procure that any person to whom it discloses Confidential Information in accordance with Clause 2.4 secures the Confidential Information against theft, damage, loss and/or unauthorized access; and shall notify the Disclosing Party as soon as it becomes aware that any Confidential Information has been disclosed to or obtained by a third party other than as permitted by this Agreement.

3. The undertakings in Clause 2 above shall also apply to anyConfidential Information that the Receiving Party can demonstrate.

4. The confidentiality obligations contained in Clause 2 shall:

4.1 apply with effect from the first disclosure of Confidential Information by a Disclosing Party to a Receiving Party (whether such disclosure occurs before or after the Effective Date of this Agreement); and vice versa

4.2 unless the Parties enter into a subsequent agreement relating to the Purpose containing provisions governing the confidentiality of the Confidential Information, remain in full force and effect indefinitely.

5. The Parties agree that Confidential Information shall remain the property of the Disclosing Party, who shall retain all rights (including intellectual property rights), title and interest therein. Upon termination of negotiations between the Parties in relation to the Purpose (unless agreed otherwise), and at any time upon request by the Disclosing Party, the Receiving Party shall, and shall procurethat all persons to whom it has disclosed Confidential Information shall, promptly:

5.1 return to the Disclosing Party at its address in Clause 9 or, at the option of the Disclosing Party, destroy and delete from its electronic records (so far as reasonably possible), all Confidential Information that is in tangible

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form, including any copies or extracts thereof; and

5.2 destroy (so far as reasonably possible) all analyses, compilations, studies or other documents containing, reflecting or derived from Confidential Information which have been prepared by the Receiving Party or any person to whom it has disclosed the Confidential Information, except to the extent that such Confidential Information is incorporated into corporate. documents or records which the Receiving Party or such personis required to retain by law or internal procedures, in which case appropriate measures shall be taken to preserve its continuing confidentiality.

6. The disclosure of Confidential Information by the Disclosing Party shall not form any offer by the Disclosing Party to proceed with any transaction or enter into any further agreement. Except (i) in the case of fraud of one of the Parties, or (ii) to the extent that the Parties mayspecifically agree otherwise in writing in any contract(s) ultimately concluded encompassing the Purpose:

6.1 no representation or warranty (express or implied) is given and no responsibility or liability is accepted by the Disclosing Party, its Personnel, its Affiliates or its Representatives in relation to the accuracy, reliability or completeness of any Confidential Information; and

6.2 neither the Disclosing Party, its Personnel, its Affiliates nor its Representatives shall:

6.2.1 have any liability (in tort, negligence or otherwise) to the Receiving Party or to any other party resulting from the use made of Confidential Information by the Receiving Party, its Personnel, its Affiliates or its Representatives or any person to whom Confidential Information is disclosed; and/or

6.2.2 be under any obligation to provide further or updated Confidential Information, or to correct any inaccuracies in Confidential Information.

7. This Agreement shall be governed by and construed in accordancewith Pune Jurisdiction.

8. Each Party acknowledges that damages alone may not be an adequate remedy for any breach of this Agreement and agrees that notwithstanding Clause 7 above, the other Party may be entitled to the remedies of injunction, specific performance or other equitable relief. Such remedy shall be in addition to and not in lieu or limitation of other remedies available at law or in equity.

9. Save as provided for herein below with respect to validity of email notices, any notices to be given hereunder by either Party to theother Party shall be (i) in English, and (ii) sent by courier, email or personally delivered to the other Party at its address stated below:

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Entity name:	NIHVA Technologies Pvt.Ltd.	FLOATSYS LLC
c/o Address:	Plot No. 187,1st floor, above Renault Showroom, G Block, MIDC, Thermax Chowk, Pimpri-Chinchwad, Maharashtra 411019	6027 EMBERWOOD FALLS DR, KATY, Texas 77494 USA
Attn: Email:	Vijay Tarak sales@nihva.com	Bijimon Punnoose Bijimon.punnoose@FloatSys.com

Any notices shall be effective as follows:

9.1 if delivered in person or by courier: at the time of actual physicaldelivery to the respective address indicated above; or

9.2 if sent by email: if not acknowledged by the recipient earlier,one full working day after being sent by the sender.

Any notice sent pursuant to Clauses 5, 7 or 8 must be delivered using both methods described in Clauses 9.1. and 9.2 above, and shall be deemed effective at the earliest of the two respective methods detailed therein.

10. The undertakings and obligations herein are not intended to create any rights in any person or entity not a Party to this Agreement, either as a third-party beneficiary or by reason of any agreement between one of the Parties hereto and another person or entity not aParty of this Agreement.

1 1. Failure to exercise, or any delay in exercising, any right or remedy provided under this Agreement or by law shall not constitute a waiver of that or any right or remedy, nor shall it preclude or restrict any further exercise of that or any other right or remedy. No single or partial exercise of any right or remedy provided under this Agreement or by law shall preclude or restrict the further exercise of that or any other right or remedy.

12. This Agreement constitutes the entire current agreement of the Parties with respect to the subject matter herein and supersedes any and all prior communications, understandings, arrangements or agreements between the Parties, whether written, oral, express or implied relating thereto. No amendment, waiver or modification tothis Agreement shall be valid unless in writing and signed by a duly authorized representative of each of the Parties. This Agreement is personal to the Parties and neither Party shall assign, transfer, subcontract or deal in any other manner with any of its rights and

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obligations under this Agreement.

13. To the extent that any Confidential Information is covered or protected by legal or any other applicable privilege or doctrine, disclosure of such Confidential Information to the Receiving Party or to any other person to whom it provides Confidential Information in accordance with this Agreement does not constitute a waiver of any such privilege.

14. If any provision of this Agreement is held to be illegal, invalid or unenforceable, that provision shall, to the extent of such illegality, invalidity or unenforceability, have no effect and be deemed not to be included in this Agreement; but this Clause shall not affect the legality, validity or enforceability of any other provision of this Agreement.

15. This Agreement may be executed in any number of counterparts,each of which will be deemed an original and all of which together willconstitute one and the same instrument.

IN WITNESS WHEREOF the Parties have caused this Agreement to be executed by their respective duly authorized representatives.

For and on behalf of:

Entity name:	NIHVA Technologies Pvt.Ltd.	FLOATSYS LLC
Signature:		
Name:	Vijay Tarak	Bijimon Punnoose
Title:	Director	CEO
Date:	May 23, 2022	May 23, 2022

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